

Photographs by PANKAJ TI



being part of a gang of highway robbers who waylaid unsuspecting motorists. One heist went terribly wrong and the victim was killed. She was convicted for murder five years ago. With her appeal against the lower court order pending in Jabalpur High Court, Shalini decided to pursue MBA and plans to specialise in human resources (HR) management.

HR appears to be the stream of choice among the MBA aspirant convicts. "It's because we can remain in the background when we eventually get out and land jobs. Nobody would want convicts of murder at the frontline jobs in sales or marketing," explains Kamlesh Gaur, 28, who worked with a leading NGO in his hometown Sehore before getting involved in a violent crime and being convicted. He wanted to pursue a masters in social work but the course is not available in the prison.

The motivation for joining the MBA course differs in each case. For Mahipal, the eldest of the group, it was

BEYOND THE BAR: Prisoners take lessons in business administration

simply to motivate fellow inmates. "If a 51-year-old guy can do it, so can others," he says. As a bonus, the grandkids in his affluent joint-family who always abhorred the idea of pursuing professional courses are beginning to get serious about quality education.

For others like the 30-year-old Rajesh Shaky, an electrical engineer from Bhopal who began his sentence six years ago, it is simply an extension of his plans before he was convicted. "It was clear by the time I had finished my engineering that it wouldn't amount to much in the job market," he says, adding that the rigours of an MBA course kept him occupied and diverted his mind from the harsh prison routine.

Each inmate who is serving a life-term has filed an appeal in the Jabalpur High Court against the conviction verdict of the lower court. And barring 40-year-old Mohammed Jaleel from Sironj who has already been incarcerated for

12 years, there is little hope for them of getting out early, if their appeals are rejected in the higher courts. The fact that they could be in prison for the long haul doesn't bother the wannabe MBAs. Shailendra Batham, 24, who was convicted when still only 18, says with a philosophical touch, "What has happened is past. Future is the only thing we can look forward to."

After the roller-coaster ride in the life of crime and punishment, many convicts begin to acquire a deep belief in the idea of fate. Others turn to religion for solace. "That's the reason why we have launched courses in priesthood and astrology. The idea is to keep them occupied with things they are comfortable with in a disturbed phase of their lives. Besides, it's a good livelihood choice for convicts after their release," says Somkunwar.

For all its novelty and potential, the idea is a flash in the pan, the outcome of individual initiative on the part of some officials rather than an institutionalised approach to wide-ranging prison reforms. The first open jail in the country for surrendered dacoits of the dreaded Chambal region closed down well over two decades ago. The only surviving open jail is in Sangar in Rajasthan without much effort for its replication elsewhere.

The *Do Aankhein, Barah Haath* moment, immortalised on celluloid by the late V. Shantaram, appears to have passed prisons by even as the Justice Mulla Commission report on prison reforms and big tomes of recommendations by every conceivable agency—right from parliamentary committees on women welfare to state human rights commissions and leading law schools—have belaboured the need for such reforms.

Prisons being a subject on the state list, the amendments to laws, codes and manuals must come from the state legislature. Explains Professor C. Rajshekhar of National Law Institute University, "Unfortunately, most lawmakers these days come from a rural-feudal background where the idea of retributive justice is deeply entrenched." But for this band of brothers serving life-terms, the idea of a professional degree is enough to look at the future with hope. ■